

NESU Zero-Interest Macro-Sovereign Economic Model

Engagement Brief for Swiss Legal Counsel — Legal Domicile, FINMA Classification & Licensing Pathway

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Status	Confidential — Conceptual Proposal. Not investment, legal, regulatory, or religious advice.

1. Purpose of This Brief

Digital-UNI is seeking to engage Swiss legal counsel to advise on the legal domicile, FINMA regulatory classification, and licensing pathway for the institutional settlement architecture described below, and to coordinate that analysis with counsel already contemplated in Algeria, the European Union, and the United States for the project's corridors. This brief sets out the project's design, the corridor in active development, the multi-jurisdictional regulatory touchpoints, and the questions on which counsel's advice is sought.

2. Nature of the Project

The NESU Zero-Interest Macro-Sovereign Economic Model is a conceptual fintech proposal. It is not an operating business, a public offering, an investment product, or a solicitation of funds. It is presented here solely to scope a legal engagement; nothing in this brief should be read as legal, investment, or regulatory advice, and none is being offered by its authors.

3. Project Overview — NESU Zero-Interest Macro-Sovereign Economic Model

3.1 Core Principle

The model separates the price of services and infrastructure from the cost of capital:

- Service & Infrastructure → Transparent Fee (AI infrastructure, compliance, risk assessment, settlement, administration, transaction processing)
- Sovereign Capital → Principal Repayment
- Interest → 0%
- Compounding → 0%

SERVICE ≠ MONEY

3.2 Eligible Participants

Participation is restricted to governments, central banks, sovereign entities, and approved international institutions. The model is not designed or offered for retail or consumer use.

3.3 Settlement Unit and Reserves

- Permissioned, asset-backed digital settlement unit
- Baseline definition: 1 NESU = 1 gram of allocated, investment-grade gold; energy and mineral transactions are priced in NESU via gold-equivalent conversion
- Reserve structure: 60% allocated physical gold, 20% verified strategic commodities and commodity receivables, 20% settlement liquidity
- Issuance rule: NESU issued must always remain at or below verified eligible reserves

3.4 Technology Architecture

A six-layer architecture is proposed: Sovereign Identity, Asset Registry, Settlement Ledger (permissioned, no mining), Oracle Network, Compliance Engine, and Audit Portal.

3.5 Governance

Governance is proposed through a treaty-based International Energy and Responsible Settlement Authority, comprising participating central banks, a financial-audit and reserve committee, a climate-science board, a cybersecurity and data-governance committee, and a dispute-resolution tribunal.

4. Institutional Corridor Tokens

Five regional Corridor Tokens are proposed, each restricted to government and institutional payments, investment, settlement, and cross-border trade — never consumer bank accounts or retail speculative tokens — with conversion to relevant sovereign currencies only through regulated financial channels.

Corridor	Status
Europe–Algeria Corridor Token	Lead / pilot corridor (in active design)
USA–Algeria Corridor Token	Roadmap
BRICS–Algeria Corridor Token	Roadmap
Middle East–Algeria Corridor Token	Roadmap
Africa–Algeria Corridor Token	Roadmap

5. Lead Corridor in Detail — Europe–Algeria Energy Settlement Corridor

The lead corridor settles natural-gas trade between Algeria and the European Union.

- Reference index: a transparent DZD–EUR index constructed from real gas-trade flows — expressly not Algeria's official or parallel exchange rate
- Named participants only: Bank of Algeria, Sonatrach, and EU counterpart banks and energy majors
- Design intent: non-tradable and state-operated, structured to remain outside the scope of Algeria's Law No. 25-10 (which prohibits cryptocurrency)

This is the corridor for which Swiss counsel's classification and licensing analysis is requested first; the remaining four corridors are roadmap items and are included for context only.

6. Multi-Jurisdictional Regulatory Landscape — European Union and United States Considerations

In addition to the Swiss domicile analysis, the corridor architecture necessarily touches EU financial-services law and, for the roadmap USA–Algeria corridor, United States financial-services law. The following is provided as background so that Swiss counsel can coordinate with EU and US counsel; it does not purport to reach conclusions on non-Swiss law, and nothing in this section should be read as advice on the law of any jurisdiction, including Algeria's.

6.1 European Union

- Markets in Crypto-Assets Regulation (MiCA) — whether the Corridor Tokens fall within MiCA's definition of “crypto-asset” at all, given they are not offered to the public and not admitted to trading on any platform; MiCA's own exclusions for instruments issued or used exclusively by central banks and recognized international public bodies may also be relevant and should be tested against the corridor's institutional-only design.
- The revised Payment Services Directive (PSD2) and any successor framework, and the E-Money Directive, to the extent EU counterpart banks treat settlement instructions as payment services.
- EU Anti-Money Laundering Directives (AMLD) and EU-wide sanctions-screening obligations applicable to the EU credit institutions and energy majors named as participants.
- Free movement of capital under Article 63 TFEU, and whether any EU member-state authorization is required for a bank or energy company to participate in a state-operated, non-tradable settlement instrument of this kind.
- Dual-use and export-control considerations (Regulation (EU) 2021/821), to the extent oracle, IoT, or verification technology is exported to Algeria as part of the corridor's shipment-verification layer.

6.2 United States (relevant primarily to the roadmap USA–Algeria Corridor Token)

- Whether the Corridor Token is a “security” under the Howey test (SEC), given its non-tradable, non-investment, sovereign/institutional-only design, or a “commodity” or derivative subject to CFTC jurisdiction given its gold- and energy-index reference.
- Bank Secrecy Act / FinCEN money-services-business and money-transmitter analysis for any US-based participant or intermediary, including FinCEN guidance distinguishing administrators, exchangers, and users of value that substitutes for currency.
- OFAC sanctions screening — Algeria is not itself subject to comprehensive US sanctions, but any US person, US-dollar-clearing bank, or US technology involved in the corridor must still be screened against OFAC's Specially Designated Nationals and sectoral sanctions lists.
- Export Administration Regulations (EAR), to the extent US-origin technology (e.g., IoT or customs-verification hardware or software) is transferred to Algeria or Algerian counterparties.
- State-level money-transmitter licensing exposure for any US financial institution acting as an intermediary.

6.3 Algeria — Relationship of the Corridor to Domestic Law

The corridor's design does not seek to place itself outside Algerian jurisdiction: Bank of Algeria and Sonatrach are themselves named principal participants, so the instrument operates as a state-operated settlement tool rather than as a public cryptocurrency of the kind restricted by Law No. 25-10. Whether this analysis holds, and whether any additional Algerian authorization is required under Bank of Algeria's exchange-control regulations or external-trade law, is a question for Algerian counsel; it is listed here so that Swiss, EU, and US counsel can coordinate their analyses with that separate confirmation rather than assume it.

7. Positioning for Classification Purposes

NESU and its Corridor Tokens are not public, mineable, or freely tradable cryptocurrencies. They are intended to be structurally distinct from Bitcoin (no mining, no public network, no retail secondary market), from central bank digital currencies (not sovereign legal tender; a permissioned multi-sovereign settlement unit instead), and from existing cross-border settlement initiatives such as BRICS Pay, mBridge, Buna, and gold-backed stablecoins. A full comparison against these systems is set out in the accompanying NESU Conceptual Proposal. A separate, forward-looking “micro-economy” layer of smaller, citizen- and local-economy-level tokens has also been proposed for a later phase; it is structurally distinct from the institutional design above, is not part of the scope of this engagement, and is noted here only for completeness.

8. Questions for Swiss Counsel

1. Classification of (a) the NESU settlement unit and (b) the institutional Corridor Tokens under FINMA's guidance on payment, utility, asset, and other token categories.
2. Applicability and scope of the Swiss DLT Act, including whether a DLT trading facility license is implicated.
3. Licensing pathway under Swiss banking, financial-market-infrastructure, and payment-services law, given permissioned participation limited to central banks, state-owned enterprises, and approved multilateral institutions.
4. AML/KYC and sanctions-screening obligations applicable to sovereign and quasi-sovereign counterparties.
5. The appropriate Swiss legal vehicle — association, foundation, or company — for the coordinating body referenced at nesu-sovereign-settlement.ch, and the governance and board implications of each option.
6. Coordination required with Algerian counsel (compliance with Law No. 25-10 for the lead corridor), EU counsel (scope assessment under MiCA and applicable EU cross-border payment and banking law per Section 6.1), and, for the roadmap USA–Algeria corridor, US counsel (securities, commodities, BSA/FinCEN, and OFAC analysis per Section 6.2).

7. Whether Swiss regulation draws any relevant distinction between the lead Europe–Algeria corridor now in active design and the four roadmap corridors, so that a phased licensing strategy can be considered.

8. Recommended sequencing of the Swiss analysis relative to the parallel EU, US, and Algerian workstreams identified in Section 6 — e.g., which jurisdiction's opinion should be sought first, and where a combined memorandum would be more efficient than separate opinions.

9. Materials Available to Counsel

- This engagement brief
- NESU Conceptual Proposal (full technical and economic description, reserve and governance design, and comparison to Bitcoin and other settlement systems)
- Public information site at nesu-sovereign-settlement.ch

10. Proposed Next Steps

1. Initial scoping call
2. Confirmation of engagement scope and fee estimate
3. Introduction to Algerian, EU, and US counsel for coordinated review

11. Contact

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